

Names We Love And Hate

DRM technologies that we encounter most often:

FairPlay

The Perpetrator: Apple

The Terms: Works on five “authorised” copies of iTunes, unlimited iPods, can be burned to an unlimited number of audio CDs.

Find it on: Music bought from the iTunes Music Store

Works with: Any player with the QuickTime plugin (PC), iPod (portable)

Windows Media DRM

The Perpetrator: Microsoft

The Terms: Licenses and media are distributed separately, and locked to a computer and portable player

Find it on: Music bought on Napster, URGE and Wal-Mart, to name a few

Works with: Windows Media Player 10 (PC), any portable player with the PlaysForSure logo

Zune DRM (not the official name)

The Culprit: Microsoft

The Terms: Incompatible with PlaysForSure devices, expires after three days or three plays if “beamed” from another Zune

Find it on: Music bought on the Zune marketplace

Works with: Windows Media Player 10 (PC), Zune (portable)

And there’s game DRM to tangle with, too: StarForce

The Perpetrator: Protection Technologies

The Terms: Wraps around DLLs and allows access only through its own virtual machine

Find it on: Games published by CDV (pre-May 2006), Ubisoft (except North

American releases), Digital Jesters, JoWood (except North American releases), Egosoft, and Codemasters. Also the free game TrackMania Nations—to ensure that nobody tampers with ESWC ranking system

SecuROM

The Perpetrator: Sony DADC

The Terms: Resists copy attempts by optical drives

Find it on: Newer games published by Ubisoft, Sony

SafeDisc

The Perpetrator: Macrovision

The Terms: Resists copy attempts by optical drives, blacklists all SCSI drives (mass replicators use SCSI drives)

Find it on: Games published by EA, Activision, id Software

etc.—are more fiercely protected than factual work like chemical equations or statistics.

3. How much of the work are you using? Taking the example of point 1, using an entire song or movie is likely to get you into more trouble than using a couple of snippets.

4. Finally, what effect will this have on the market? In the early days, even P2P passed off as fair use—what’s a couple of songs between friends, right?—and look at what happened. If you’re depriving people of money they should be getting (or think they should be getting), you’re in for trouble.

The Trouble With DRM

One of the things that fair use allows you to do is make as many copies of media as you want, as long as it’s for personal use. DRM-ed content today, however, puts restrictions on the number of copies you can make, so if you go through one hard disk upgrade too many, the song will expire, and you’ll have to buy it again. So much for fair use...

We’ve been talking about how DRM is the implementation of a copyright act—what we failed to mention is that that is how DRM *should* work. In reality, all DRM technology you see today is geared towards one thing—money. We have it. They want it, and They’ll go to any length to ensure that we can’t get content without paying for it, even if we’re within our fair use rights to do so—Hollywood even admits this internally!

Does this mean that we don’t have our rights any more? Of course not—unless the laws are changed. What it does mean is that DRM, depending on the way it’s implemented, may well prevent you from exercising those rights. In the long term, DRM will also hinder the evolution of your fair use rights—if TV serials aired with a “do not tape” flag that prevented your VCR from recording it back in the 80s, the ques-

tion of it becoming a fair use doesn’t even arise. Ditto the ability to rip CDs to your hard drive. Effectively, DRM and copyright acts are in stark contrast—copyright law says that if it’s not restricted, it’s permissible, but DRM says that if it isn’t explicitly permitted, it’s off limits. Now you know why it’s also been called Digital Restrictions Management.

DRM And You

It’s an obscure fact, but did you know that music cassettes and blank tapes you bought so many years ago came with their own “piracy tax”? Record companies assumed that these cassettes would be copied and shared with friends, so they added a little bit to the prices to compensate for any losses they might face. There is talk that this may stage a comeback, and we might even be rid of DRM in the next three years. If you haven’t already, flip back to page 29 and read the talk about the “Collective License” under *Opposing Forces in Power 2 The People*. The fee you’ll pay for the freedom to download all music is basically the cost of content plus a little piracy tax—and no DRM!

Peter Jenner, Pink Floyd’s first manager, sums up the situation quite eloquently: “Big record labels are f***ed”, he says, and “digital music pricing has been a scam where the consumer pays for manufacturing, distribution, and does all the work—and still has to pay more. The DRM era is nearly over—and within two or three years, most countries in the world will have a blanket licensing regime where we exchange music freely, for a couple of quid a month.”

It’s a tad idealistic to pessimists like us, but optimism is healthy. In the meanwhile, brace yourself for an inconvenient couple of years—at least. ■

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